

Calendar Line 5

Case Name: XIAOLEI HU vs LAURA PATERSON et al

Case Number: 24CV444525

Plaintiff moves to quash nine subpoenas that Defendants have issued for her employment records and records of treating medical providers.

Both parties assert certain procedural deficiencies. Plaintiff criticizes Defendants' compliance with notice requirements, and Defendant argues Plaintiff did not include a declaration to provide evidentiary support for her purported facts. The Court finds neither argument dispositive. The Court is satisfied with Defendants' compliance with notice requirements and Plaintiff's opportunity to object. Also, the Court does not believe a further declaration from Plaintiff is necessary to balance the principal issues related to these subpoenas – the balance of Plaintiff's privacy interests versus Defendants' right to discover information that is relevant or reasonably likely to lead to relevant and admissible evidence.

Where privacy rights are implicated, the requesting party must make a threshold showing that the records sought are directly relevant to the plaintiff's claims and are essential to the fair resolution of the lawsuit. (*Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014.) "Mere speculation as to the possibility that some portion of the records might be relevant to some substantive issue does not suffice" for showing direct relevance as to private information sought in discovery. (*Id.*, at pp. 1017-1020.)

It is true that Plaintiff has made a number of claims that put her medical as well as her employment and wage records at issue. It appears the parties have narrowed their dispute to the topic of pre-incident records that may reveal Plaintiff suffered from preexisting conditions affecting her health and employment. While Defendants argue that Plaintiff's injuries and damages may be due to pre-incident conditions, they provide little explanation as to why this would be so. The subject subpoenas demand all documents and records for Plaintiff without limitation to scope or time. This would necessarily include information regarding any treatment Plaintiff has ever received for any condition she may have had whether related to the subject injuries claimed in this action or not. As written, the subpoenas are overbroad and Plaintiff's objections are well taken.

There are times when preexisting conditions are of sufficient relevance to the issues presented that evidence relating to these conditions is discoverable. The incident in the case occurred on August 8, 2022. In Plaintiff's Response to Form Interrogatory 10.2, she states, "I was diagnosed with anxiety and depression in February 2022 and started taking short term disability leave. The pain caused by the INCIDENT has led to long-term insomnia, *significantly worsening my anxiety and depression, and resulting in my collapse in my office ... on June 29, 2023.*" (Emphasis added.) Thus, Plaintiff has revealed a preexisting condition that was diagnosed six months before the incident, that affected her ability to work, that was worsened by the incident, and that contributed to certain aspects of her claimed injuries. Defendants therefore may be entitled to reasonable exploration into Plaintiff's pre-incident records. But as currently drafted, Defendants' subpoenas contain no limitation to a time period reasonably likely to shed light on a condition diagnosed in February 2022, and the Court has no ability to determine why the subpoenaed entities in the matters before the Court might have such information.

In light of the forgoing, Plaintiff's motions to quash are GRANTED without prejudice to Defendants' being able to pursue more narrowly tailored subpoenas not inconsistent with this ruling.

Plaintiff, in pro per, seeks fees and costs pursuant to Code Civ. Proc. § 1987.2. This request is DENIED. The Court does not find the motion was opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive. Furthermore, the Court would not choose to impose discretionary sanctions in this instance regardless, and Plaintiff has not supported the request with supporting evidence.

The Court will prepare the final order.

- oo0oo -

Calendar Line 16

Case Name: *Jeff Taylor v. Ford Motor Company*

Case Number: 21CV390568

“It is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ (*Guidery v. Green*, 95 Cal. 630, 633; *Marr v. Rhodes*, 131 Cal. 267, 270.) If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. (*Nelson v. Superior Court*, 97 Cal.App.2d 78; *Estate of Herbst*, 26 Cal.App.2d 249; *Norton v. Bassett*, 158 Cal. 425, 427.)” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal. App. 2d 527, 530-531 (error for trial court to fail to give leave to amend)).

Defendant argues Plaintiff’s Request for Leave to Amend the Complaint should be denied for failing to comply with the California Rules of Court Rule 3.1324. Also, if the party seeking amendment has been dilatory and the delay will prejudice the opposing party, the court has discretion to deny leave to amend. (*Hirsa v. Sup. Ct.* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, result in loss of critical evidence or increased preparation costs, or increase discovery burdens. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

While it is true Plaintiff’s only explanation for seeking amendment, and failure to amend earlier, is the “changed the landscape for actions brought under the Song-Beverly Consumer Warranty Act” brought about by *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 (*Rodriguez*), the Court in this matter seems to have accommodated the parties until November 2024 based on an openly and jointly stated perspective that trial setting would best wait until the California Supreme Court decided *Rodriguez*. Once that happened, the Court scheduled a trial setting conference three months later noting, “An Amended Complaint is being prepared.” (Minutes, 11/14/24.) There was certainly no surprise in Plaintiff’s waiting to file and then filing the amended complaint. It also appears the most significant force driving the case toward a trial date was the Court itself.

Trial in this matter is set for November 10, 2025. The Court does not believe permitting this amendment five months prior to trial would prejudice Defendant. Defendant will still have the ability to attack the pleadings or move for summary judgment. Defendant seems already well positioned to make such attacks given the arguments it makes in opposition to the motion here. Defendant argues that permitting amendment would “significantly alter Ford’s defense, and hinder its ability to adequately defend itself resulting in prejudice and delay at this late stage of the litigation.” However, Defendant offers no support for this claim. The Court, to the contrary, suspects the need for a trial continuance is unlikely.

As for Defendant’s attacks on the proposed amended pleading, “leave to amend may be denied where permitting an amendment would be futile (*Long v. Century Indemnity Co.* (2008) 163 Cal.App.4th 1460, 1468), e.g., where the amendment does not state a cause of action. (See *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230; *Heckendorn v. City of*

San Marino (1986) 42 Cal.3d 481, 489 [leave to amend should be denied where no liability exists under substantive law].” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 828.) However, the preferred practice is to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings, or other appropriate proceedings. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Plaintiff’s Motion for Leave to File a First Amended Complaint is accordingly GRANTED.

Plaintiff to prepare the final order and to serve and file the First Amended Complaint within 5 days of the date of the hearing.

- oo0oo -